

24STCV28965 24STCV28965

County: los-angeles

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MOTION

TO ENFORCE SETTLEMENT AND MOTION TO SEAL

Moving Party: Plaintiff Rebeka Rodriguez (Pacific Trial Attorneys)

Responding Party: Defendant Ox Car Care, Inc. (in propria persona) (no response filed)

Ruling: Motion to seal is DENIED. Motion to enforce judgment requires further information concerning the class claims.

This is a California Invasion of Privacy Act (CIPA) case. Plaintiff Rebeka Rodriguez (Plaintiff) alleges that defendant Ox Car Care, Inc. (Defendant) violated CIPA by using tracking software on visitors to its website. This case was filed on November 4, 2024, as an individual action. On December 18, 2024, Plaintiff filed a first amended complaint reframing the case as a class action. The case was designated complex and transferred to the complex litigation program. After nearly a year of no activity, Defendant's counsel moved for and was granted leave to withdraw as counsel in March 2026. At some point, Plaintiff and Defendant reached a settlement on an individual basis. In May 2026, the Court struck Defendant's answer for failure to retain new counsel and, at Plaintiff's request, set a hearing on a motion to enforce settlement.

Plaintiff contemporaneously moves to seal portions of the memorandum on the motion to enforce settlement, the declaration of Scott J.

Ferrell, and Exhibit A thereto, which is the settlement agreement. Cal. Rules of Court, rule 2.550 provides that court records are presumed to be open (Id., subd. (c)) and that a court may seal a record only where:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

(Cal. Rules of Court, rule 2.550(d).)

The only reason given for the sealing sought here is that the terms of the settlement “were contractually agreed to be confidential by the Parties.” (Ferrell Declaration ISO Sealing Motion, ¶ 4.) This interest without more does not override the public’s right of access to court records, and indeed, the law recognizes that “a law established for a public reason cannot be contravened by a private agreement.” (Civ. Code § 3513.) The parties here have not offered any facts about the reasons why confidentiality is important to them or about why those interests outweigh any public interest in disclosure. The Court’s tentative is therefore to deny the motion to seal based on the record before the Court.

Assuming Plaintiff wishes to proceed with the motion to enforce, the Court will address it. Plaintiff reports that Defendant has not paid the settlement amount, despite being required to do so by August 16, 2025, and requests that the Court order it to do so. Under Code of Civil Procedure §

664.6, the Court may only enter judgment pursuant to the terms of the settlement. (Code Civ. Proc. § 664.6.) Despite reaching a settlement in July 2025, Plaintiff never dismissed the class claims, which remain outstanding. The Court cannot enter a judgment until Plaintiff has complied with the procedures for dismissing class actions set forth in Cal. Rules of Court, rule 3.770. While Plaintiff's counsel's declaration might suffice for some of the information required under Rule 3.770(a), more is needed. The Court will discuss the dismissal further at the hearing.